

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 25-13

AMERICAN IRON & METAL

COMPANY INC.,

COMPLAINANT,

v.

PRIVA LOGISTICS, INC.,

RESPONDENT.

CONSENT MOTION FOR EXTENSION OF TIME

Respondent and Counter Complainant, Priva Logistics, Inc. (“Priva”), through its undersigned counsel, respectfully submits this Consent Motion for Extension of Time and proposed revised procedural schedule (the “Motion”). This Motion is being filed with the consent of Complainant and Counter Respondent, American Iron & Metal Company Inc. (“AIM”). This Motion is filed in compliance with 46 C.F.R. § 502.102, which allows motions for enlargement of time to “be granted upon a showing of good cause” if “received at least seven (7) days before the scheduled filing date.” Priva files this Motion after having conferred with AIM as required by 46 C.F.R. § 502.71 and AIM has consented to the filing of the Motion and the proposed revised schedule. This Motion represents the first request for an extension of deadlines in this case. Priva respectfully submits that based on the good cause detailed below, the Motion should be granted and the case deadlines extended.

This matter was initiated by AIM on June 27, 2025. Dkt. 1. On July 23, 2025, Priva timely responded to AIM's Complaint by filing its Verified Answer and Counterclaim. Dkt. 8. The Parties filed their Joint Status Report and Proposed Discovery Schedule on August 5, 2025. Dkt. 11. That same day, the Presiding Officer issued a Scheduling Order. Dkt. 12. The Presiding Officer's Scheduling Order provided the following case deadlines:

September 12, 2025	Service of Requests for Production and Fact Interrogatories.
November 1, 2025	Complete Document Production.
November 21, 2025	Complete Fact Depositions.
November 21, 2025	Expert Discovery Phase Begins.
December 20, 2025	Discovery Closed.
January 5, 2026	Meeting to discuss Joint Prehearing Statement must be held by this date; hearing exhibits must be exchanged.
January 26, 2026	Joint prehearing statement, objections to exhibits, and motions for confidential treatment are due.
February 9, 2026	Prehearing conference to be held at 800 North Capitol Street, NW, Washington, DC at 10:30 AM.

Following the issuance of the Scheduling Order, the Parties engaged in settlement discussions, completed written discovery, and held the fact deposition of Priva's representative in her personal capacity and as Priva's corporate representative. At this time, Priva anticipates that the fact deposition of one AIM employee, in their personal capacity and as AIM's corporate representative, will be required to complete fact discovery. Further, the Parties have conferred and do not anticipate that this case will require expert evidence, which allows for the removal of the expert discovery period in the proposed schedule below.

On November 21, 2025, below-signed counsel for Priva began his service as a grand juror for the District of Columbia Superior Court. Prior to grand jury duty beginning, the Parties agreed to work together to complete the required discovery around below-signed counsel's jury duty obligations. Since beginning grand jury service, however, below-signed counsel has confirmed that grand jury service requires his attendance from 9:00 a.m. to 5:00 p.m. each weekday through

December 30, 2025. As such, it has become evident that the grand jury duty commitment of Priva's counsel will not permit adequate time during business hours to conduct the deposition of AIM's representative before the close of discovery or to properly prepare this matter for hearing under the current case deadlines.

Accordingly, Priva, with the consent of AIM, respectfully moves the Presiding Officer to extend and amend the case deadlines in this matter, and proposes the following amended schedule:

January 30, 2026	Complete Fact Depositions and Discovery Closed.
February 13, 2026	Meeting to discuss Joint Prehearing Statement must be held by this date; hearing exhibits must be exchanged.
March 6, 2026	Joint prehearing statement, objections to exhibits, and motions for confidential treatment are due.
March 17, 2026	Prehearing conference to be held at 800 North Capitol Street, NW, Washington, DC at 10:30 AM.

Based on the good cause shown above, and with the consent of AIM, Priva respectfully prays for an Order extending the current case deadlines as proposed above.

Dated: December 15, 2025

Respectfully Submitted,

HOLLAND & KNIGHT LLP

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Complainant Priva Logistics, Inc.*

CERTIFICATE OF SERVICE

I hereby certify that I have this day served the foregoing document by electronic mail on the following persons/addresses:

1. Office of the Secretary
Federal Maritime Commission
secretary@fmc.gov
2. Hon. Alex M. Chintella – *Administrative Law Judge*
Federal Maritime Commission
judges@fmc.gov
3. Flaster/Greenberg, P.C.
Counsel for Complainant/Counter-Respondent
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 - b. Jeffrey J. Rizzo
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Dated: December 15, 2025

Respectfully Submitted,

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